

complaint

Mr M has complained that Acromas Insurance Company Limited refused to deal with a claim he made under his motor insurance policy when his car was stolen.

background

Mr M was visiting a friend to get a telephone number. He left his car outside with the keys in the ignition and the engine running. He went into his friend's house for 10 – 15 minutes. He found out his car had been stolen when he left his friend's house. It was later recovered by police and put in storage. It had been involved in a crash and was damaged.

Mr M reported the theft to Acromas. Acromas initially said it wasn't likely to deal with the claim, but then told him it would deal with the claim and cover storage costs. It later said it wouldn't deal with his claim as Mr M had left his car unattended with the keys in it, so cover was excluded.

Mr M complained to Acromas. It apologised for giving him misleading information and paid him £100 compensation. But it said its decision to decline his claim was correct.

Mr M remained unhappy, so he asked us to look at his complaint. The investigator thought Acromas had been reasonable in its assessment of Mr M's claim. And its compensation for providing misleading information to Mr M was fair.

Mr M didn't agree. So the matter has been passed to me to decide.

my findings

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint. Having done so, I don't intend to uphold it.

Mr M's policy – as with most insurance policies – has exclusions to the cover it provides. I've looked at whether Acromas did enough to make Mr M aware of this exclusion.

Under the 'Loss or Damage' section of Mr M's policy it says Acromas will not cover the following:

"Loss or damage caused by theft or attempted theft if your vehicle is not fully locked and secured; or the keys and/or any other devices(s) that unlock and/or start your vehicle are in, on or next to your vehicle while it is left unattended and/or unoccupied."

Under the section 'General exceptions applicable to all of the policy' it states that Mr M isn't covered for the following:

"Any theft claim unless: your vehicle is fully locked and secured and any keys and/or any other device(s) that unlock your vehicle are removed when it is left unattended or unoccupied."

And Mr M's Certificate of Insurance, states:

"Theft Claims; Please ensure your vehicle is fully locked and secured and any keys and/or any other device(s) that unlock your vehicle are removed when it is left unattended or unoccupied."

Finally, his policy booklet also says Mr M must do all he can to protect his car and contents from loss or damage. So I think Acromas did enough to alert Mr M to the exclusion of cover if he left his keys in his car when he bought his policy.

I understand that Mr M didn't intend to leave his car unattended. He was invited in to his friend's house and made the decision to go in and leave his car unattended for over 10 minutes. But ultimately I don't think Mr M took enough care to protect his car from being stolen. So I think Acromas' decision not to settle his theft claim is reasonable.

Acromas provided Mr M with incorrect information during one of his calls. It led him to believe it would deal with this claim. Mr M was told correctly the next day that Acromas wouldn't be dealing with his claim after all. I think Acromas' apology to Mr M with compensation of £100 for its error is reasonable, given the length of time he was led to believe it would deal with his claim.

I know Mr M will be very disappointed with my decision. But overall, I think Acromas has dealt with his complaint reasonably. So I'm not asking it do anymore.

my final decision

For the reasons I've given above, my final decision is that I don't uphold this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr M to accept or reject my decision before 15 March 2017.

Geraldine Newbold
ombudsman